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ment of lawmaking authority, he told his people that “[i]t would be difficult, if not impossible to successfully operate the Creek government now.” App. to Brief for Respondent 8a (Message to Creek National Council (May 7, 1901), reprinted in *The Indian Journal* (May 10, 1901)). The “remnant of a government” had been reduced to a land office for finalizing the distribution of allotments and would be “maintained only until” the Tribe’s “landed and other interests . . . have been settled.” App. to Brief for Respondent 8a. He reiterated this understanding following the Five Tribes Act of 1906, which stated that the tribal government would “continue[] in full force and effect for all purposes authorized by law.” §28, 34 Stat. 148. While the Court believes that meant Congress decided against disestablishing the reservation, see *ante*, at 910, Chief Porter saw things differently. From his vantage point as the contemporaneous leader of the government at issue, Congress had temporarily continued the tribal government but left it with only “limited and circumscribed” authority: The council could “pass[] resolutions respecting our wishes” regarding the property “now in the process of distribution,” but the council no longer had any authority to “mak[e] laws for our government.” App. to Brief for Respondent 14a (Message to Creek National Council (Oct. 18, 1906), reprinted in *The New State Tribune* (Oct. 18, 1906)). Apart from distributing the Nation’s property, Chief Porter maintained that “all powers over the governing even of our landed property will cease” once the new state government was established. App. to Brief for Respondent 15a; see also S. Rep. No. 5013, 59th Cong., 2d Sess., pt. 1, p. 885 (1907) (Choctaw governor mourning that his “only” remaining authority was “to sign deeds”).

The Creek remained of that view after Oklahoma was officially made a State through the Enabling Act. At that point, the new principal Chief confirmed that it was “utterly impossible” to resume “our old tribal government.” App. to Brief for Respondent 16a–17a (Address by Moty Tiger to

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Creek National Council (Oct. 8, 1908), reprinted in *The Indian Journal* (Oct. 9, 1908)). And any “appeal to the government at Washington to alter its purpose to wipe out all tribal government among the five civilized tribes” would “be to no purpose.” App. to Brief for Respondent 16a. “[C]ontributions” for such efforts would be “just that much money thrown away,” and “all attorneys at Washington or elsewhere who encourage and receive any part of such contributions do it knowing that they can give no return or service for same and that they take such money fraudulently and dishonestly.” *Id.*, at 17a.⁵

In addition to their words, the contemporaneous actions of Oklahoma, the Creek, and the United States in criminal matters confirm their shared understanding that Congress did not intend a reservation to persist. Had the land been a reservation, the federal government—not the new State—would have had jurisdiction over serious crimes committed by Indians under the Major Crimes Act of 1885. See § 9, 23 Stat. 385. Yet, at statehood, Oklahoma immediately began prosecuting serious crimes committed by Indians in the new state courts, and the federal government immediately ceased prosecuting such crimes in federal court. At argument, McGirt’s counsel acknowledged that he could not cite a single example of federal prosecutions for such crimes. Tr. of Oral Arg. 17–18. Rather, the record demonstrates that case after case was transferred to state court or filed there outright by Oklahoma after 1907—without objection by anyone. See,

⁵The Court discounts the views of the principal chiefs as mere predictions about what Congress “*would*” do, *ante*, at 920, but the Court ignores statements made after statehood, describing what Congress *did* do. The Court also asserts that the chiefs’ views cannot serve as “evidence” of the “meaning” of laws enacted by Congress. *Ante*, at 921, n. 12. That is inconsistent with our precedent, which specifically instructs us to determine Congress’s intent by considering the “understanding of the status of the reservation by members” of the affected tribe. *Parker*, 577 U. S., at 488. The contemporaneous understanding of the leaders of the tribe is highly probative.

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e. g., *Bigfeather v. State*, 7 Okla. Crim. 364, 123 P. 1026 (1912) (manslaughter); *Rollen v. State*, 7 Okla. Crim. 673, 125 P. 1087 (1912) (assault with intent to kill); *Jones v. State*, 3 Okla. Crim. 593, 107 P. 738 (1910) (murder); see also Brief for Petitioner in *Sharp v. Murphy*, O. T. 2018, No. 17–1107, pp. 40–41 (collecting more cases). These prosecutions were lawful, the Oklahoma Supreme Court recognized at the time, because Congress had not intended to “except out of [Oklahoma] an Indian reservation” upon its admission as a State. *Higgins v. Brown*, 20 Okla. 355, 425, 94 P. 703, 730 (1908).

Instead of explaining how everyone at the time somehow missed that a reservation still existed, the Court resorts to misdirection. It observes that Oklahoma state courts have held that they erroneously entertained prosecutions for crimes committed by Indians on the small number of remaining restricted allotments and tribal trust lands from the 1930s until 1989. But this Court has not addressed that issue, and regardless, it would not tell us whether the State properly prosecuted major crimes committed by Indians on the lands at issue here—the unrestricted fee lands that make up more than 95% of the Creek Nation’s former territory. Perhaps most telling is that the State’s jurisdiction over crimes on Indian allotments was hotly contested from an early date, whereas nobody raised objections based on a surviving reservation. See, *e. g.*, *Ex parte Nowabbi*, 60 Okla. Crim. 111, 61 P. 2d 1139 (1936), overruled by *State v. Klindt*, 782 P. 2d 401, 404 (Okla. Crim. App. 1989); see also *ante*, at 917 (“no court” suggested the “possibility” that “the Creek lands really were part of a reservation” until 2017).⁶

⁶The Court claims that the Oklahoma courts’ reasons for treating restricted allotments as Indian country must apply with “equal force” to the unrestricted fee lands at issue here, but the Court ultimately admits the two types of land are “legally distinct.” *Ante*, at 919, n. 10. And any misstep with regard to the small number of restricted allotments hardly means the Oklahoma courts made the far more extraordinary mistake of failing to notice that the Five Tribes’ reservations—encompassing 19 million acres—continued to exist.

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Lacking any other arguments, the Court suspects uniform lawlessness: The State must have “overstepped its authority” in prosecuting thousands of cases for over a century. *Ante*, at 919. Perhaps, the Court suggests, the State lacked “good faith.” *Ibid.* In the Court’s telling, the federal government acquiesced in this extraordinary alleged power grab, abdicating its responsibilities over the purported reservation. And, all the while, the state and federal courts turned a blind eye.

But we normally presume that government officials exercise their duties in accordance with the law. Certainly the presumption may be strained from time to time in this area, but not so much as to justify the Court’s speculations, which posit that government officials at every level either conspired to violate the law or uniformly misunderstood the fundamental structure of their society and government. Whatever the imperfections of our forebears, neither option seems tenable. And it is downright inconceivable that this could occur without prompting objections—from anyone, including from the Five Tribes themselves. Indians frequently asserted their rights during this period. The cases above, for example, involve criminal appeals brought by Indians, and Indians raised numerous objections to land graft in the former Territory. See Brief for Historians et al. as *Amici Curiae* 28–31. Yet, according to the extensive record compiled over several years for this case and a similar case, *Sharp v. Murphy*, 591 U. S. 977 (2020) (*per curiam*), Indians and their counsel did not raise a single objection to state prosecutions on the theory that the lands at issue were still a reservation. It stretches the imagination to suggest they just missed it.

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Finally, consider “the subsequent treatment of the area in question and the pattern of settlement there.” *Yankton Sioux Tribe*, 522 U. S., at 344. This evidence includes the “subsequent understanding of the status of the reservation by members and nonmembers as well as the United States

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and the [relevant] State,” and the “subsequent demographic history” of the area. *Parker*, 577 U.S., at 488, 492; see *Solem*, 465 U.S., at 471. Each of the indicia from our precedents—subsequent treatment by Congress, the State’s unquestioned exercise of jurisdiction, and demographic evidence—confirms that the Creek reservation did not survive statehood.

First, “Congress’ own treatment of the affected areas” strongly supports disestablishment. *Id.*, at 471. After statehood, Congress enacted several statutes progressively eliminating restrictions on the alienation and taxation of Creek allotments, and Congress subjected even restricted lands to state jurisdiction. Since Congress had already destroyed nearly all tribal authority, these statutes rendered Creek parcels little different from other plots of land in the State. See Act of May 27, 1908, 35 Stat. 312; Act of June 14, 1918, 40 Stat. 606; Act of Apr. 10, 1926, 44 Stat. 239. This is not a scenario where Congress merely opened land for “purchase . . . by non-Indians” while allowing the Tribe to “continue to exercise governmental functions over [the] land,” *ante*, at 907, and n. 3; rather, Congress eliminated both restrictions on the lands here and the Creek Nation’s authority over them. Such developments would be surprising if Congress intended for all of the former Indian Territory to be reservation land insulated from state jurisdiction in significant ways. The simpler and more likely explanation is that they reflect Congress’s understanding through the years that “all Indian reservations as such have ceased to exist” in Oklahoma, S. Rep. No. 1232, 74th Cong., 1st Sess., 6 (1935), and that “Indian reservations [in the Indian Territory] were destroyed” when “Oklahoma entered the union,” S. Rep. No. 101–216, p. 47 (1989).

That understanding is now woven throughout the U. S. Code, which applies numerous statutes to the land here by extending them to the “*former* reservation[s]” “in

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Oklahoma”—underscoring that no reservation exists today. 25 U.S.C. § 2719(a)(2)(A)(i) (emphasis added) (Indian Gaming Regulatory Act); see Brief for United States as *Amicus Curiae* 23; 23 U.S.C. § 202(b)(1)(B)(v) (road grants; “former Indian reservations in the State of Oklahoma”); 25 U.S.C. § 1452(d) (Indian Financing Act; “former Indian reservations in Oklahoma”); § 2020(d) (education grants; “former Indian reservations in Oklahoma”); § 3103(12) (National Indian Forest Resources Management Act; “former Indian reservations in Oklahoma”); 29 U.S.C. § 741(d) (American Indian Vocational Rehabilitation Services Act; “former Indian reservations in Oklahoma”); 33 U.S.C. § 1377(c)(3)(B) (waste treatment grants; “former Indian reservations in Oklahoma”); 42 U.S.C. § 5318(n)(2) (urban development grants; “former Indian reservations in Oklahoma”).⁷

Second, consider the State’s “exercis[e] [of] unquestioned jurisdiction over the disputed area since the passage of” the Enabling Act, which deserves “weight” as “an indication of

⁷The Court suggests that these statutes only show that there are some “former reservations” in Oklahoma, not that the Five Tribes’ former domains are necessarily among them. *Ante*, at 923, n. 14. History says otherwise. For example, the Five Tribes actively lobbied for inclusion of this language in the Indian Gaming Regulatory Act. See Hearing on S. 902 et al. before the Senate Select Committee on Indian Affairs, 99th Cong., 2d Sess., 299–300 (1986). They observed that the term “reservation,” as originally defined, did not pertain to the “eastern Oklahoma tribes, including the Five Civilized Tribes.” *Ibid.* (statement of Charles Blackwell, representative of the Chickasaw Nation of Oklahoma). Accordingly, they “recommend[ed] inclu[ding] . . . the wording ‘or in the case of Oklahoma tribes, their *former* jurisdictional and/or reservation boundaries in Oklahoma.’” *Id.*, at 300 (emphasis added). The National Indian Gaming Association, which proposed the language on which the final act was ultimately modeled, made the same point, observing that in Oklahoma “reservation boundaries have been extinguished for most purposes” so the statute should refer to “former reservation[s] in Oklahoma.” *Id.*, at 312 (Memorandum from the National Indian Gaming Assn. to the Senate Select Committee on Indian Affairs (June 17, 1986)).

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the intended purpose of the Act.” *Rosebud Sioux Tribe*, 430 U. S., at 599, n. 20, 604. As discussed above, for 113 years, Oklahoma has asserted jurisdiction over the former Indian Territory on the understanding that it is not a reservation, without any objection by the Five Tribes until recently (or by McGirt for the first 20 years after his convictions). See Brief for Respondent 4, 40. The same goes for major cities in Oklahoma. Tulsa, for example, has exercised jurisdiction over both Indians and non-Indians for more than a century on the understanding that it is not a reservation. See Brief for City of Tulsa as *Amicus Curiae* 27–28.

All the while, the federal government has operated on the same understanding. Brief for United States as *Amicus Curiae* 24. No less than Felix Cohen, whose authoritative treatise the Court repeatedly cites, agreed while serving as Acting Solicitor of the Interior in 1941 that “all offenses by or against Indians” in the former Indian Territory “are subject to State laws.” App. to Supp. Reply Brief for Petitioner in *Sharp v. Murphy*, O. T. 2018, No. 17–1107, p. 1a (Memorandum for Commissioner of Indian Affairs (July 11, 1941)). In the view of the Department of the Interior, such state jurisdiction was appropriate because the reservations in the Territory “lost their character as Indian country” by the time Oklahoma became a State. App. to Brief for United States as *Amicus Curiae* 4a (Letter from O. Chapman, Assistant Secretary of the Interior, to the Attorney General (Aug. 17, 1942)); see also *supra*, at 964, n. 6.

Indeed, far from disputing Oklahoma’s jurisdiction, the Five Tribes themselves have repeatedly and emphatically agreed that no reservation exists. After statehood, tribal leaders and members frequently informed Congress that “there are no reservations in Oklahoma.” App. to Brief for Respondent 19a (Testimony of Hon. Bill Anoatubby, Governor, Chickasaw Nation, Hearings before the Subcommittee on Indian, Insular and Alaska Native Affairs of the House

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Committee on Natural Resources (Feb. 24, 2016)).⁸ They took the same position before federal courts. Before this litigation started, the Creek Nation represented to the Tenth Circuit that there is only “‘checkerboard’ Indian country within its *former* reservation boundaries.” Reply Brief in No. 09–5123, p. 5 (emphasis added). And the Nation never once contended in this Court that a sprawling reservation still existed in the more than a century that preceded the present disputes.

Like the Creek, this Court has repeatedly described the area in question as the “former” lands of the Creek Nation. See *Grayson v. Harris*, 267 U. S. 352, 353 (1925) (lands “lying within the former Creek Nation”); *Woodward*, 238 U. S., at 285 (lands “formerly part of the domain of the Creek Nation”); *Washington v. Miller*, 235 U. S. 422, 423 (1914) (lands “within what until recently was the Creek Nation”). Yet today the Court concludes that the lands have been a Creek reservation all along—contrary to the position shared for the past century by this Court, the United States, Oklahoma, and the Creek Nation itself.

Under our precedent, Oklahoma’s unquestioned, century-long exercise of jurisdiction supports the conclusion that no reservation persisted past statehood. See *Yankton Sioux Tribe*, 522 U. S., at 357; *Hagen*, 510 U. S., at 421; *Rosebud Sioux Tribe*, 430 U. S., at 604–605. “Since state jurisdiction over the area within a reservation’s boundaries is quite limited, the fact that neither Congress nor the Department of

⁸See App. to Brief for Respondent 18a–19a (excerpting various statements before Congress, including: “[w]e are not a reservation tribe” (Principal Cherokee Chief, 1982), “Oklahoma, . . . of course, is not a reservation State” (Chickasaw Governor, 1988), “Oklahoma is not [a reservation State]” and “[w]e have no surface reservations in Oklahoma” (Chickasaw advisor, 2011), as well as references to the boundaries and lands of “former reservation[s]” (Chickasaw nominee for Assistant Secretary of Indian Affairs, 2012; Inter-Tribal Council of the Five Civilized Tribes, 2016)).

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Indian Affairs has sought to exercise its authority over this area, or to challenge the State's exercise of authority is a factor entitled to weight as a part of the 'jurisdictional history.'" *Id.*, at 603–604 (citations omitted).

Third, consider the "subsequent demographic history" of the lands at issue, which provides an "'additional clue'" as to the meaning of Congress's actions. *Parker*, 577 U. S., at 492 (quoting *Solem*, 465 U. S., at 472). Continuing from statehood to the present, the population of the lands has remained approximately 85%–90% non-Indian. See Brief for Respondent 43; *Murphy v. Royal*, 875 F. 3d 896, 965 (CA10 2017). "[T]hose demographics signify a diminished reservation." *Yankton Sioux Tribe*, 522 U. S., at 357. The Court questions whether the consideration of demographic history is appropriate, *ante*, at 914–915, 922–923, but we have determined that it is a "necessary expedient." *Solem*, 465 U. S., at 472, and n. 13 (emphasis added); see *Parker*, 577 U. S., at 492. And for good reason. Our precedents recognize that disestablishment cases call for a wider variety of tools than more workaday questions of statutory interpretation. *Supra*, at 948. In addition, the use of demographic data addresses the practical concern that "[w]hen an area is predominately populated by non-Indians with only a few surviving pockets of Indian allotments, finding that the land remains Indian country seriously burdens the administration of state and local governments." *Solem*, 465 U. S., at 471–472, n. 12.

Here those burdens—the product of a century of settled understanding—are extraordinary. Most immediately, the Court's decision draws into question thousands of convictions obtained by the State for crimes involving Indian defendants or Indian victims across several decades. This includes convictions for serious crimes such as murder, rape, kidnapping, and maiming. Such convictions are now subject to jurisdictional challenges, leading to the potential release of numerous individuals found guilty under state law of the most

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grievous offenses.⁹ Although the federal government may be able to re prosecute some of these crimes, it may lack the resources to re prosecute all of them, and the odds of convicting again are hampered by the passage of time, stale evidence, fading memories, and dead witnesses. See Brief for United States as *Amicus Curiae* 37–39. No matter, the Court says, these concerns are speculative because “many defendants may choose to finish their state sentences rather than risk re prosecution in federal court.” *Ante*, at 933. Certainly defendants like McGirt—convicted of serious crimes and sentenced to 1,000 years plus life in prison—will not adopt a strategy of running out the clock on their state sentences. At the end of the day, there is no escaping that today’s decision will undermine numerous convictions obtained by the State, as well as the State’s ability to prosecute serious crimes committed in the future.

Not to worry, the Court says, only about 10%–15% of Oklahoma citizens are Indian, so the “majority” of prosecutions will be unaffected. *Ibid.* But the share of serious crimes committed by 10%–15% of the 1.8 million people in eastern Oklahoma, or of the 400,000 people in Tulsa, is no small number.

Beyond the criminal law, the decision may destabilize the governance of vast swathes of Oklahoma. The Court, despite briefly suggesting that its decision concerns only a narrow question of criminal law, ultimately acknowledges that “many” federal laws, triggering a variety of rules, spring into effect when land is declared a reservation. *Ante*, at 935.

⁹The Court suggests that “well-known” “procedural obstacles” could prevent challenges to state convictions. *Ante*, at 933. But, under Oklahoma law, it appears that there may be little bar to state habeas relief because “issues of subject matter jurisdiction are never waived and can therefore be raised on a collateral appeal.” *Murphy v. Royal*, 875 F. 3d 896, 907, n. 5 (CA10 2017) (quoting *Wallace v. State*, 935 P. 2d 366, 372 (Okla. Crim. App. 1997)).

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State and tribal authority are also transformed. As to the State, its authority is clouded in significant respects when land is designated a reservation. Under our precedents, for example, state regulation of even non-Indians is preempted if it runs afoul of federal Indian policy and tribal sovereignty based on a nebulous balancing test. This test lacks any “rigid rule”; it instead calls for a “particularized inquiry into the nature of the state, federal, and tribal interests at stake,” contemplated in light of the “broad policies that underlie” relevant treaties and statutes and “notions of sovereignty that have developed from historical traditions of tribal independence.” *White Mountain Apache Tribe v. Bracker*, 448 U. S. 136, 142, 144–145 (1980). This test mires state efforts to regulate on reservation lands in significant uncertainty, guaranteeing that many efforts will be deemed permissible only after extensive litigation, if at all.¹⁰

In addition to undermining state authority, reservation status adds an additional, complicated layer of governance over the massive territory here, conferring on tribal government power over numerous areas of life—including powers over non-Indian citizens and businesses. Under our precedents, tribes may regulate non-Indian conduct on reservation land, so long as the conduct stems from a “consensual relationship[] with the tribe or its members” or directly affects “the political integrity, the economic security, or the health or welfare of the tribe.” *Montana v. United States*, 450

¹⁰ See, e. g., *White Mountain Apache Tribe*, 448 U. S., at 148–151 (barring State from imposing motor carrier license tax and fuel use taxes on non-Indian logging companies that harvested timber on a reservation); *Warren Trading Post Co. v. Arizona Tax Comm’n*, 380 U. S. 685, 690–692 (1965) (barring State from taxing income earned by a non-Indian who operated a trading post on a reservation); *New Mexico v. Mescalero Apache Tribe*, 462 U. S. 324, 325 (1983) (barring State from regulating hunting and fishing by non-Indians on a reservation); see also *Brendale v. Confederated Tribes and Bands of Yakima Nation*, 492 U. S. 408, 448 (1989) (opinion of Stevens, J.) (arguing that it is “impossible to articulate precise rules that will govern whenever a tribe asserts that a land use approved by a county board is pre-empted by federal law”).

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U. S. 544, 565–566 (1981); see Cohen § 6.02(2)(a), at 506–507. Tribes may also impose certain taxes on non-Indians on reservation land, see *Kerr-McGee Corp. v. Navajo Tribe*, 471 U. S. 195, 198 (1985), and in this litigation, the Creek Nation contends that it retains the power to tax nonmembers doing business within its borders. Brief for Muscogee (Creek) Nation as *Amicus Curiae* 18, n. 6. No small power, given that those borders now embrace three million acres, the city of Tulsa, and hundreds of thousands of Oklahoma citizens. Recognizing the significant “potential for cost and conflict” caused by its decision, the Court insists any problems can be ameliorated if the citizens of Oklahoma just keep up the “spirit” of cooperation behind existing intergovernmental agreements between Oklahoma and the Five Tribes. *Ante*, at 936–937. But those agreements are small potatoes compared to what will be necessary to address the disruption inflicted by today’s decision.

The Court responds to these and other concerns with the truism that significant consequences are no “license for us to disregard the law.” *Ante*, at 936. Of course not. But when those consequences are drastic precisely because they depart from how the law has been applied for more than a century—a settled understanding that our precedents demand we consider—they are reason to think the Court may have taken a wrong turn in its analysis.

* * *

As the Creek, the State of Oklahoma, the United States, and our judicial predecessors have long agreed, Congress disestablished any Creek reservation more than 100 years ago. Oklahoma therefore had jurisdiction to prosecute McGirt. I respectfully dissent.

JUSTICE THOMAS, dissenting.

I agree with THE CHIEF JUSTICE that the former Creek Nation Reservation was disestablished at statehood and Oklahoma therefore has jurisdiction to prosecute petitioner

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for sexually assaulting his wife's granddaughter. *Ante*, at 938–939 (dissenting opinion). I write separately to note an additional defect in the Court's decision: It reverses a state-court judgment that it has no jurisdiction to review. “[W]e have long recognized that ‘where the judgment of a state court rests upon two grounds, one of which is federal and the other non-federal in character, our jurisdiction fails if the non-federal ground is independent of the federal ground and adequate to support the judgment.’” *Michigan v. Long*, 463 U. S. 1032, 1038, n. 4 (1983) (quoting *Fox Film Corp. v. Muller*, 296 U. S. 207, 210 (1935)). Under this well-settled rule, we lack jurisdiction to review the Oklahoma Court of Criminal Appeals' decision, because it rests on an adequate and independent state ground.

In his application for state postconviction relief, petitioner claimed that Oklahoma lacked jurisdiction to prosecute him because his crime was committed on Creek Nation land and thus was subject to the exclusive jurisdiction of the Federal Government under the Major Crimes Act, 18 U. S. C. § 1153. In support of his argument, petitioner cited the Tenth's Circuit's decision in *Murphy v. Royal*, 875 F. 3d 896 (2017).

The Oklahoma Court of Criminal Appeals concluded that petitioner's claim was procedurally barred under state law because it was “not raised previously on direct appeal” and thus was “waived for further review.” App. A to Pet. for Cert. 2 (citing Okla. Stat., Tit. 22, § 1086 (2011)). The court found no grounds for excusing this default, explaining that “[p]etitioner [had] not established any sufficient reason why his current grounds for relief were not previously raised.” App. A to Pet. for Cert. 2. This state procedural bar was applied independent of any federal law, and it is adequate to support the decision below. We therefore lack jurisdiction to disturb the state court's judgment.

There are two possible arguments in favor of jurisdiction, neither of which hold water. First, one might claim that the state procedural bar is not an “adequate” ground for decision

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in this case. In *Murphy*, the Tenth Circuit suggested that Oklahoma law permits jurisdictional challenges to be raised for the first time on collateral review. 875 F. 3d, at 907, n. 5 (citing *Wallace v. State*, 1997 OK CR 18, 935 P. 2d 366). But the Oklahoma Court of Criminal Appeals did not even hint at such grounds for excusing petitioner’s default here. More importantly, however, we may not go beyond “the four corners of the opinion” and delve into background principles of Oklahoma law to determine the adequacy of the independent state ground. *Long*, 463 U. S., at 1040. This Court put an end to that approach in *Long*, noting that “[t]he process of examining state law is unsatisfactory because it requires us to interpret state laws with which we are generally unfamiliar, and which often, as in this case, have not been discussed at length by the parties.” *Id.*, at 1039. Moreover, such second-guessing disrespects “the independence of state courts,” *id.*, at 1040, and the State itself, *Coleman v. Thompson*, 501 U. S. 722, 738–739 (1991).

Second, one might argue, as the Court does, that we have jurisdiction because the decision below rests on federal, not state, grounds. See *ante*, at 933–934, n. 15. It is true that the Oklahoma Court of Criminal Appeals briefly recited the procedural history of *Murphy* and recognized that the Tenth Circuit’s decision—which we granted certiorari to review—is not yet final. But contrary to the Court’s assertion that brief discussion of federal case law did not come close to “address[ing] the merits of [petitioner’s] federal [Major Crimes Act] claim.” *Ante*, at 934, n. 15. The state court did not analyze the relevant statutory text or this Court’s decisions in *Solem v. Bartlett*, 465 U. S. 463 (1984), and *Nebraska v. Parker*, 577 U. S. 481 (2016). It reads far too much into the opinion to claim that the court’s brief reference to the Tenth Circuit’s decision in *Murphy* transformed the state court’s decision into one that “fairly appears to rest primarily on federal law or to be interwoven with federal law,” *Long*, *supra*, at 1040–1041; see also *ante*, at 934, n. 15. Nothing in

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the court's opinion suggests that its judgment was at all based on federal law. Thus, even if we were to set aside the fact that the state court "clearly and expressly state[d] that [its decision] was based on state procedural grounds," we could not presume jurisdiction here. *Coleman, supra*, at 735–736 (internal quotation marks omitted).

The Court might think that, in the grand scheme of things, this jurisdictional defect is fairly insignificant. After all, we were bound to resolve this federal question sooner or later. See *Royal v. Murphy*, 584 U. S. 992 (2018). But our desire to decisively "settle [important disputes] for the sake of convenience and efficiency" must yield to the "overriding and time-honored concern about keeping the Judiciary's power within its proper constitutional sphere." *Hollingsworth v. Perry*, 570 U. S. 693, 704–705 (2013) (internal quotation marks omitted). Because the Oklahoma court's "judgment does not depend upon the decision of any federal question[,] we have no power to disturb it." *Enterprise Irrigation Dist. v. Farmers Mut. Canal Co.*, 243 U. S. 157, 164 (1917).

I agree with THE CHIEF JUSTICE that the Court misapplies our precedents in granting petitioner relief. *Ante*, at 943–973 (dissenting opinion). But in doing so, the Court also overrides Oklahoma's statutory procedural bar, upsetting a violent sex offender's conviction without the power to do so. The State of Oklahoma deserves more respect under our Constitution's federal system. Therefore, I respectfully dissent.

Syllabus

SHARP, WARDEN *v.* MURPHYCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE TENTH CIRCUIT

No. 17–1107. Argued November 27, 2018—Decided July 9, 2020

Held: The judgment of the Court of Appeals—which held that Congress has not disestablished the Creek Reservation and thus Mr. Murphy’s crime is subject to exclusive federal jurisdiction because Mr. Murphy is an Indian and the crime occurred in Indian country—is affirmed for the reasons stated in *McGirt v. Oklahoma*, 591 U. S. 894 (2020).

875 F. 3d 896, affirmed.

Lisa S. Blatt argued the cause for petitioner. With her on the briefs were *Mike Hunter*, Attorney General of Oklahoma, *Mithun Mansinghani*, Solicitor General, *Jennifer Crabb*, Assistant Attorney General, *Michael K. Velchik* and *Randall Yates*, Assistant Solicitors General, *Sally L. Pei*, *Stephen K. Wirth*, and *R. Reeves Anderson*.

Deputy Solicitor General Kneedler argued the cause for the United States as *amicus curiae* urging reversal. With him on the briefs were *Solicitor General Francisco*, *Assistant Attorney General Clark*, *Acting Assistant Attorney General Wood*, *Erica L. Ross*, *William B. Lazarus*, *Elizabeth Ann Peterson*, and *James A. Maysonett*.

Ian Heath Gershengorn argued the cause for respondent. With him on the briefs were *Patti Palmer Ghezzi*, *Emma Rolls*, *Michael Lieberman*, *Zachary C. Schauf*, *David A. Strauss*, and *Sarah M. Konsky*.

Riyaz A. Kanji argued the cause for Muscogee (Creek) Nation as *amicus curiae* urging affirmance. With him on the briefs were *David A. Giampetroni* and *Cory J. Albright*.*

*Briefs of *amici curiae* urging reversal were filed for the State of Nebraska et al. by *Douglas J. Peterson*, Attorney General of Nebraska, *James D. Smith*, Solicitor General, *David A. Lopez*, Deputy Solicitor General, and *Ryan S. Post*, Assistant Attorney General, by *Derek Schmidt*,

Per Curiam

PER CURIAM.

The judgment of the United States Court of Appeals for the Tenth Circuit is affirmed for the reasons stated in *McGirt v. Oklahoma*, 591 U. S. 894 (2020).

It is so ordered.

JUSTICE GORSUCH took no part in the consideration or decision of this case.

JUSTICE THOMAS and JUSTICE ALITO dissent.

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Attorney General of Kansas, *Jeffrey A. Chanay*, Chief Deputy Attorney General, *Toby Crouse*, Solicitor General, and *Bryan C. Clark* and *Dwight R. Carswell*, Assistant Solicitors General, and by the Attorneys General of their respective States as follows: *Jeff Landry* of Louisiana, *Bill Schuette* of Michigan, *Tim Fox* of Montana, *Marty J. Jackley* of South Dakota, *Ken Paxton* of Texas, *Sean D. Reyes* of Utah, and *Peter K. Michael* of Wyoming; for the Environmental Federation of Oklahoma, Inc., et al. by *Lynn H. Slade* and *Sarah M. Stevenson*; for the International Municipal Lawyers Association et al. by *Charles W. Thompson, Jr.*, *Amanda Kellar Karras*, and *Sarah M. Shalf*; for the Oklahoma Independent Petroleum Association by *Blaine H. Evanson* and *Anthony J. Ferate*; and for the Oklahoma Sheriffs' Association et al. by *Kyle T. Cutts* and *Robert D. Cheren*.

Briefs of *amici curiae* urging affirmance were filed for *Historians* et al. by *L. Susan Work*, *Todd Hembree*, and *Chrissi Ross Nimmo*; for the National Congress of American Indians by *Colette Routel*; for the National Indigenous Women's Resource Center et al. by *Mary Kathryn Nagle*; for *David Boren* et al. by *Robert H. Henry*, *Michael Burrage*, *Stephen H. Greetham*, *Brad Mallett*, *Douglas B. L. Endreson*, and *Frank S. Holleman IV*; and for *Troy A. Eid* et al. by *Mr. Eid*, *pro se*, and *Jennifer H. Weddle*.

Per Curiam

BARR, ATTORNEY GENERAL, ET AL. *v.* LEE ET AL.

ON APPLICATION FOR STAY OR VACATUR

No. 20A8. Decided July 14, 2020

The District Court preliminarily enjoined four federal executions—hours before the first was scheduled—on the ground that the single drug protocol of pentobarbital the Government plans to use to carry out the executions likely constitutes cruel and unusual punishment prohibited by the Eighth Amendment. The Government presented an application for stay or vacatur to THE CHIEF JUSTICE, which was referred by him to the Court.

Held: Vacatur of the District Court’s injunction is appropriate because the prisoners have not established a likelihood of success on the merits of their Eighth Amendment claim. The Court has never concluded that a State’s execution method qualifies as cruel and unusual. *Bucklew v. Precythe*, 587 U. S. 119, 133. The Federal Government here selected a lethal injection execution protocol that has become a mainstay of state executions and has been used to carry out more than 100 executions. Pentobarbital has been thought to be less painful and more humane than traditional methods of execution, and “does not carry the risks” of pain that some have associated with other lethal injection protocols. *Zagorski v. Parker*, 586 U. S. 938, 939 (SOTOMAYOR, J., dissenting from denial of application for stay and denial of certiorari). The drug’s use has been upheld by numerous Courts of Appeals against Eighth Amendment challenges similar to the one presented here. Against this backdrop, the federal prisoners present new expert declarations suggesting that pentobarbital will cause the sensation of drowning or asphyxiation, a suggestion challenged by the Government’s experts. No justification exists here for last-minute intervention by a federal court.

Preliminary injunction vacated.

PER CURIAM.

The application for stay or vacatur presented to THE CHIEF JUSTICE and by him referred to the Court is granted. The District Court’s July 13, 2020 order granting a preliminary injunction is vacated.

The plaintiffs in this case are all federal prisoners who have been sentenced to death for murdering children. The plaintiffs committed their crimes decades ago and have long

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exhausted all avenues for direct and collateral review. The first of their executions was scheduled to take place this afternoon, with others to follow this week and next month. To carry out these sentences, the Federal Government plans to use a single drug—pentobarbital sodium—that “is widely conceded to be able to render a person fully insensate” and “does not carry the risks” of pain that some have associated with other lethal injection protocols. *Zagorski v. Parker*, 586 U. S. 938, 939 (2018) (SOTOMAYOR, J., dissenting from denial of application for stay and denial of certiorari).

Hours before the first execution was set to take place, the District Court preliminarily enjoined all four executions on the ground that the use of pentobarbital likely constitutes cruel and unusual punishment prohibited by the Eighth Amendment. Vacatur of that injunction is appropriate because, among other reasons, the plaintiffs have not established that they are likely to succeed on the merits of their Eighth Amendment claim. That claim faces an exceedingly high bar. “This Court has yet to hold that a State’s method of execution qualifies as cruel and unusual.” *Bucklew v. Precythe*, 587 U. S. 119, 133 (2019). For good reason—“[f]ar from seeking to superadd terror, pain, or disgrace to their executions, the States have often sought more nearly the opposite,” developing new methods, such as lethal injection, thought to be less painful and more humane than traditional methods, like hanging, that have been uniformly regarded as constitutional for centuries. *Ibid.* The Federal Government followed this trend by selecting a lethal injection protocol—single-dose pentobarbital—that has become a mainstay of state executions. Pentobarbital:

- Has been adopted by five of the small number of States that currently implement the death penalty.
- Has been used to carry out over 100 executions, without incident.
- Has been repeatedly invoked by prisoners as a *less* painful and risky alternative to the lethal injection protocols of other jurisdictions.

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- Was upheld by this Court last year, as applied to a prisoner with a unique medical condition that could only have increased any baseline risk of pain associated with pentobarbital as a general matter. See *Bucklew*, 587 U. S. 119.
- Has been upheld by numerous Courts of Appeals against Eighth Amendment challenges similar to the one presented here. See, e. g., *Whitaker v. Collier*, 862 F. 3d 490 (CA5 2017); *Zink v. Lombardi*, 783 F. 3d 1089 (CA8 2015); *Gissendaner v. Commissioner*, 779 F. 3d 1275 (CA11 2015).

Against this backdrop, the plaintiffs cite new expert declarations suggesting that pentobarbital causes prisoners to experience “flash pulmonary edema,” a form of respiratory distress that temporarily produces the sensation of drowning or asphyxiation. But the Government has produced competing expert testimony of its own, indicating that any pulmonary edema occurs only *after* the prisoner has died or been rendered fully insensate. The plaintiffs in this case have not made the showing required to justify last-minute intervention by a Federal Court. “Last-minute stays” like that issued this morning “should be the extreme exception, not the norm.” *Bucklew*, 587 U. S., at 150. It is our responsibility “to ensure that method-of-execution challenges to lawfully issued sentences are resolved fairly and expeditiously,” so that “the question of capital punishment” can remain with “the people and their representatives, not the courts, to resolve.” *Ibid.* In keeping with that responsibility, we vacate the District Court’s preliminary injunction so that the plaintiffs’ executions may proceed as planned.

It is so ordered.

JUSTICE BREYER, with whom JUSTICE GINSBURG joins, dissenting.

Today, for the first time in 17 years, the Federal Government will execute an inmate, Daniel Lewis Lee. I have pre-